

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1833

 By: Thompson and Hamilton of
 the Senate

6 and

7 West (Tammy) and **Cantrell**
8 of the House

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10
11 An Act relating to the Supplemental Nutrition
12 Assistance Program (SNAP); directing the Department
13 of Human Services to seek certain federal waiver;
14 authorizing certain additional waiver; describing
15 waiver; specifying implementation deadline; requiring
16 submission of certain annual report; providing for
17 codification; and providing an effective date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 241.5 of Title 56, unless there
21 is created a duplication in numbering, reads as follows:

22 A. The Department of Human Services, subject to receipt of
23 federal approval as described in subsection B of this section:
24

1 1. Shall prohibit the use of Supplemental Nutrition Assistance
2 Program (SNAP) benefits for the purchase of candy and soft drinks;
3 and

4 2. May exclude any other foods the Director of Human Services
5 deems a nonnutritive food item.

6 B. The Department shall submit a request for a federal waiver
7 to the United States Department of Agriculture Food and Nutrition
8 Service to seek authorization to implement the provisions of
9 paragraph 1 of subsection A of this section and may seek
10 authorization, either through the initial waiver request or through
11 one or more subsequent waiver requests, to implement the provisions
12 of paragraph 2 of subsection A of this section. Any such waiver
13 request shall include:

14 1. A justification citing:

- 15 a. public health concerns,
- 16 b. SNAP's statutory intent, and
- 17 c. cost savings to taxpayers;

18 2. An implementation plan ensuring that existing point-of-sale
19 systems used by retailers in this state have the ability to properly
20 enforce the restriction;

21 3. A strategy for education and outreach informing SNAP
22 recipients of alternative healthy food options; and

23 4. A reporting mechanism to track the impact of the waiver,
24 including spending patterns and health outcomes.

1 C. If the waiver is approved, the Department shall implement
2 the restrictions within six (6) months of receiving federal
3 authorization.

4 D. The Department shall electronically submit an annual report
5 to the President Pro Tempore of the Senate, the Speaker of the House
6 of Representatives, and the Governor that includes:

- 7 1. The status of the waiver request;
- 8 2. Data on SNAP spending patterns in this state; and
- 9 3. Any identified challenges or recommendations for further
10 policy action.

11 SECTION 2. This act shall become effective November 1, 2026.

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13 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
14 OVERSIGHT, dated 04/16/2026 - DO PASS, As Coauthored.